



Serial No.05
Regular List

HIGH COURT OF MEGHALAYA
AT SHILLONG

WP(C). No. 66 of 2025

Date of Decision: 05.08.2025

Smt. Sutapa Chakravarty,
W/o. Late Subikash Chakravarty,
aged about 67years,
C/o Shri. Pranab Sikdar,
Burnside compound, Rilbong,
Shillong 793004, Meghalaya.

:::Petitioner

-Versus-

1. The Chief Commissioner of Income Tax,
Aayakar Bhawan 110 M.G.Road,
Shillong – 793001 (Meghalaya).
2. The Principal Commissioner of Income Tax,
Aayakar Bhawan 110 M.G.Road,
Shillong – 793001 (Meghalaya).
3. The Income Tax Officer, WARD 52(1),
Bamboo Vila, 169 A J C Bose Road,
Kolkata.

:::Respondents

Coram:

Hon’ble Mr. Justice H. S. Thangkhiew, Judge
Hon’ble Mr. Justice B. Bhattacharjee, Judge

Appearance:

For the Petitioner/Applicant(s) : Mr. N. Dasgupta, Adv.
Ms. A. Synrem, Adv.

For the Respondent(s) : Mr. S. C. Keyal, Adv.
Mr. S. Pandey, Adv.



i)	Whether approved for reporting in Law journals etc:	Yes/No
ii)	Whether approved for publication in press:	Yes/No

JUDGMENT AND ORDER (ORAL)

Per H. S. Thangkhiew, Judge:

1. The writ petitioner is before this Court in this 3rd round of litigation, alleging that the respondents have still to pass a final speaking order for the closure of the Capital Gain Deposit Scheme (CGDS) Account of the petitioner, inspite of order dated 06.09.2024, passed in WP(C) No. 213 of 2024, directing for the same.

2. It has been submitted by Mr. N. Dasgupta, learned counsel for the petitioner that in the order dated 06.09.2024, passed by this Court, directions had been issued to the respondents to dispose of the application for closure of CGDS Account of the petitioner within a period of 4(four) weeks, which however, has only been partially complied with, inasmuch as, by the present impugned order dated 22.11.2024, only partial release from the CGDS Account was accorded, but not the full amount. The learned counsel then submits that a reply was submitted to the order dated 22.11.2024, asserting that the withholding of the balance amount was arbitrary and contrary to law, inasmuch as, as the transaction in question had resulted in a capital loss, no tax liability arises. He thus prays that directions be issued to the respondents



to pass final orders for closure of the CGDS Account, in compliance with the order of this Court dated 06.09.2024, within a stipulated time frame.

3. Mr. S. C. Keyal, learned counsel for the respondents has submitted that necessary compliance of the orders passed by this Court has already been made, by providing the assessee petitioner reasonable opportunity of being heard and the closure of the CGDS Account, by the order dated 22.11.2024, was approved to the extent of Rs.1,09,29,600/- since the conditions as laid down in the Capital Gain Account Scheme, was not fulfilled by the assessee. The compliance of all the conditions he submits, also includes the filing of revised income tax returns for the relevant years, which is completely a separate issue, and does not form any part of the closure of CGDS proceedings. The petitioner he submits, was requested to file return of income for the assessment year 2018-19, by a notice under Section 148 of the Act, since the immovable property transaction was required to be filed, even if there was a loss on the said transfer of the capital asset, and asserts that, though the petitioner claims to have filed a revised return on 03.09.2024, the same was prior to the order of this Court dated 06.09.2024. The learned counsel however concedes that the respondents are agreeable to examine the petitioner's case, subject to the filing of a revised income tax return for the assessment year 2018-19, incorporating the value



of the sale of the property, wherein loss has been stated to have been incurred.

4. On hearing the learned counsel for the parties, this Court notes that the non-closure of the CGDS Account finally, was due to the stand taken by the respondents, that the revised income tax return as requested by the notice under Section 148 had not been complied with. Though, it has been submitted by the learned counsel for the petitioner that a revised return had been submitted on 03.09.2024, the same was admittedly prior to the order of this Court dated 06.09.2024. A perusal of the impugned order also reflects that the assessee had acted on the advice of a Tax Consultant, and the sale proceeds of the transaction was parked mistakenly in the CGDS Account, though as claimed by the assessee, there was a capital loss. As Capital Gain is a subject matter of the assessment proceedings for the assessment year 2018-19, in the considered view of this Court, and as per the submission of the learned counsel for the respondents, it is directed that the petitioner shall file her revised income tax returns for the assessment year 2018-19, before the respondent No. 3, and if necessary, also be permitted to effect the same by filing the returns physically.

5. On such returns being filed, the respondents shall then take up the matter for issuance of final orders for closure of the CGDS Accounts, in



accordance with law. The exercise considering the fact that the matter has been pending since 2019, shall be dealt with most expeditiously.

6. As ordered above, this writ petition is accordingly closed and disposed of.

(B.Bhattacharjee)
Judge

(H.S.Thangkhiew)
Judge

Meghalaya
05.08.2025
"D. Thabah- PS"